

25VECV01957 25VECV01957

County: los-angeles

Division: Civil Law and Motion

Department: T

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Case Number: 25VECV01957 Hearing Date: June 30, 2026 Dept: T

25VECV01957 Zebian v Jaguar

Tentative rulings: All rulings apply with equal force on all counsel, all witnesses, and all parties. Attorneys are responsible for assuring their clients and witnesses are aware of rulings on the MILs.

Plaintiff Mills

1. Grant

2. Grant.

3. Deny as to discussions before the lawsuit was filed, grant as to discussions after the lawsuit was filed.

4. Grant.

5. This is a boilerplate motion. Denied in a vacuum. Make a specific objection when it becomes relevant to do so.

6. Grant.

7. Grant.

8. This is a boilerplate motion. Denied in a vacuum. Make a specific objection when it becomes relevant to do so.

9. Grant.

10. This is a boilerplate motion. Denied in a vacuum. Make a specific objection when it becomes relevant to do so.

11. This is a boilerplate motion. Denied in a vacuum. Make a specific objection when it becomes relevant to do so.

12. Grant.

13. Grant.

14. Grant.

15. This is a boilerplate motion. Denied in a vacuum. Make a specific objection when it becomes relevant to do so.

[At the time of posting this, there were no MILs 16-20 filed by plaintiff]

Defendant Mils

1. This is a boilerplate motion. Denied in a vacuum. Make a specific objection when it becomes relevant to do so.

2. This is a boilerplate motion. Denied in a vacuum. What specific testimony is sought to be excluded? Otherwise, make the objection during trial.

3. This is a boilerplate motion. Denied in a vacuum. What specific testimony is sought to be excluded? If recalls are related to the claimed non-conformities, they are admissible. Goodwill repairs are also relevant if they are related the the claimed non-conformities. Otherwise, the court will follow the applicable law. Anything more specific can be objected to at the time of the question.

4. Grant.

5. This is a boilerplate motion. Denied in a vacuum. Make a specific objection when it becomes relevant to do so.

6. This is a boilerplate motion. Denied in a vacuum. Plaintiff may testify as to whether the existence of the non-conformity impaired its use, value, or safety, if there is proper foundation. Some non-conformities do not need expert testimony and are within the general knowledge of the public (the door opens unexpectedly while driven, the lights won't turn on at night, etc.) It depends. Therefore, the objection should be made at the time of the question at trial.

7. Denied as to communications concerning warranty repairs, grant as to any other issues. The manufacturer has designated the dealership as its agent for communicating with purchasers for warranty information and repairs. Accordingly, the dealer and its personnel who communicated with the plaintiff concerning the vehicle problems are agents of the defendant for those purposes.

8. This is a boilerplate motion. Denied in a vacuum. Make a specific objection when it becomes relevant to do so.

9. This is a boilerplate motion. The court will follow the law on allowable damages. Otherwise, make an objection at the time of trial.

10. This is a boilerplate motion. The court will follow the law on allowable damages. Otherwise, make an objection at the time of trial.

11. This is a boilerplate motion. The court will follow the law on allowable damages. Otherwise, make an objection at the time of trial.

12. This is a boilerplate motion. Denied in a vacuum. Make a specific objection when it becomes relevant to do so.

13. This is a boilerplate motion. Denied in a vacuum. Make a specific objection when it becomes relevant to do so.

14. This is a boilerplate motion. Denied in a vacuum. Make a specific objection when it becomes relevant to do so.